

24STCV29592 24STCV29592

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Motion for

Judgment

The Court tenders the following

tentative decision in the matter Gabriel Oliva, et al. v. FCA US, LLC, et al., Los Angeles County Superior Court case number 24STCV29592, set for hearing on September 3, 2026. FCA US LLC (Defendant) moves for judgment on the pleadings as to Gabriel and Lyseth Oliva's (collectively, Plaintiffs) sixth cause of action for fraudulent inducement via concealment contained within their complaint. Defendant's motion is granted. Plaintiffs are granted 20 days' leave to amend.

A.

Legal Standard

A motion for judgment on the pleadings may be made after the time to demur has expired and an answer has been filed. (Code Civ. Proc., § 438, subd. (f).) A motion by a defendant may be made on the grounds that the "complaint does not state facts sufficient to constitute a cause of action against that defendant." (Id., § 438, subd. (c)(1)(B)(ii).) A motion for judgment on the pleadings has the same function as a general demurrer but is made after the time for demurrer has expired. Except as provided by statute, the rules governing demurrers apply. (Cloud v. Northrop Grumman Corp. (1998) 67 Cal.App.4th 995, 999.)

Like a general demurrer, "ordinarily, a [motion for judgment on the pleadings] does not lie as to a portion of a cause of action, and if any part of a cause of action is properly pleaded, the [motion] will be overruled." (Fire

Insurance Exchange v. Superior Court (2004) 116 Cal.App.4th 446, 452.) In considering a motion for judgment on the pleadings, courts consider whether properly pled factual allegations — assumed to be true and liberally construed — are sufficient to constitute a cause of action. (Stone Street Capital, LLC v. Cal. State Lottery Commission (2008) 165 Cal.App.4th 109, 116.) Courts may also consider facts subject to judicial notice. (Tung v. Chicago Title Co. (2021) 63 Cal.App.5th 734, 759.)

B.

Discussion

Defendant argues that Plaintiffs' sixth cause of action for fraudulent inducement via concealment is barred by the relevant statute of limitations. Actions for fraud must be brought within three years of the "discovery, by the aggrieved party, of the facts constituting the fraud." (Code Civ. Proc., § 338, subd. (d).) In a fraudulent inducement case, a plaintiff discovers the facts constituting fraud when they learn that a provision of the contract was fraudulent. Here, Plaintiffs allege that they discovered defects in their vehicle within the express warranty period. (Compl. ¶ 15.) Thus, Plaintiffs allege to have discovered facts constituting fraud between their purchase of the subject vehicle on June 13, 2021, and the filing of the present case on November 12, 2024. Thus, a statute of limitations defense appears on the face of the complaint: Plaintiffs' pleading is ambiguous and leaves open the possibility that they discovered the alleged fraud as early as June 13, 2021, which would have required them to bring their fraud claim by June 13, 2024. Thus, the claim would be barred by the three-year statute of limitations. Accordingly, Defendant's motion for judgment on the pleadings is granted.

C.

Conclusion

The Court grants

Defendant's motion for judgment on the pleadings. Plaintiffs are granted 20 days' leave to amend.